

Court No. - 9

Case :- CONTEMPT APPLICATION (CIVIL) No. - 8611 of 2023

Applicant :- Anil

**Opposite Party :- Sri Bharat Bhushan Rai, Executive Engineer
And Another**

Counsel for Applicant :- Brij Raj

Hon'ble Rohit Ranjan Agarwal, J.

The writ Court on 21.07.2023 while disposing of Writ-C No.21409 of 2023 had passed the following order:-

"1. Heard Sri Amit Kumar holding brief of Sri Brij Raj, learned counsel for the petitioner; learned Standing Counsel for the State respondent no. 1 and Sri Ajay Kumar Singh, learned counsel for the private respondent no. 4 and 5. Sri Udit Chandra has accepted notice on behalf of respondent no. 2 and 3/Electricity Department.

2. The present writ petition has been preferred for a mandamus commanding the respondents to connect/provide electricity by re-installation of meter no. 4608454, as early as possible in premises situated at village and post Chaubeypur, Kandipur, District Varanasi-221104. With a further prayer for a mandamus commanding respondents to award damages in accordance with U.P.Electricity Supply Code 2005.

3. The record in question reflects that the petitioner had earlier approached this Court by means of WRIT - C No. - 15881 of 2023 with a grievance to the respondent-Electricity Department to provide electric connection to the petitioner's premises situated at village and post Chaubeypur, Kandipur, District- Varanasi. Admittedly, the case was set up in earlier round of litigation on the ground of tenancy. The aforesaid writ petition was entertained on 10.5.2023 and the Division Bench had proceeded to accord the reprieve to the petitioner to the extent that in case, the petitioner furnishes indemnity bond as per Annexure 4.2 as contemplated under Clause 4.4 of the U.P. Electricity Supply Code, 2005, the respondent-Electricity Department will take decision after hearing the parties in respect of sanction of electricity connection within four weeks. In response to the said direction, admittedly, the Executive Engineer has asked the petitioner to produce certain documents by letter dated 9.6.2023 but instead of responding the said letter, petitioner has again approached this Court.

4. On the other hand, learned counsel for the respondent no. 4 and 5 who are landlord has raised an objection that the petitioner has deliberately mislead the Authority concerned and even he has not approached this Court with a clean hand and as such, the writ petition is liable to be dismissed by this Court on this ground alone.

5. Considering the facts and circumstances of the case, we are not inclined to entertain the writ petition. Needless to say, in case, the petitioner files a response to the letter dated 9.6.2023 within a week's time, definitely, the Authority concerned would proceed to process his application for electricity connection in the light of the direction issued by this Court in the aforementioned writ petition.

6. With the aforesaid observations, the present writ petition stands disposed of."

From the perusal of the aforesaid order, it is clear that the writ Court had declined to interfere in the matter.

Once, the writ Court had declined to interfere in the matter, no case for contempt is made out.

In view of the said fact, the present contempt application is misconceived and the same stands dismissed.

Order Date :- 4.12.2023

SK Goswami